IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH – 1
VC AND PHYSCIAL (HYBRID) MODE
ATTENDANCE CUM ORDER SHEET OF THE HEARING HELD ON
16-07-2025 AT **02:00 PM**

CA (CAA) No. 31/230/HDB/2025
U/s. 230 R/w 232 of Companies Act, 2013 R/w Rule 3 of CAA, 2016

IN THE MATTER OF:
M/s. 3 Loq Labs Pvt Ltd., (1st Applicant/Transferor Co., 1), M/s. Bitkemy Technologies Pvt Ltd., (2nd Applicant/Transferor Co., 2), M/s. Kagami (India) Pvt Ltd., (3rd Applicant/Transferor Co., 3) & M/s. Prasaditya Idea Pvt Ltd., (Transferee Company) **...Petitioner**

CORAM:-
SH. RAMMURTI KUSHAWAHA, HON'BLE MEMBER (JUDICIAL)
SH. MAN MOHAN GUPTA, HON'BLE MEMBER (TECHNICAL)

ORDER

Learned Counsel Mr. M.Parameswara Reddy for Petitioner present through video conference.

Order pronounced in open court and recorded *vide* separate sheets. In the result, **CA(CAA) No.31/230/HDB/2025 is allowed,** subject to the directions mentioned in the order.

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MAN MOHAN GUPTA
MEMBER (T)

SD/-
RAMMURTI KUSHAWAHA
MEMBER (J)

Siva/Manohar

NATIONAL COMPANY LAW TRIBUNAL
BENCH-1 HYDERABAD

CA (CAA) No. 31/230/HDB/2025

Application under Section 230-232 of the Companies Act, 2013

IN THE MATTER OF SCHEME OF AMALGAMATION BETWEEN

3 LOQ LABS PRIVATE LIMITED
(TRANSFEROR COMPANY NO.1)
AND
BITKEMY TECHNOLOGIES PRIVATE LIMITED
(TRANSFEROR COMPANY NO.2)
AND
KAGAMI (INDIA) PRIVATE LIMITED
(TRANSFEROR COMPANY NO.3)
WITH
PRASADITYA IDEA PRIVATE LIMITED
(TRANSFEREE COMPANY)
AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Loq Labs Private Limited
Registered office : Rajapraasadamu, Level-2,
Plot No 6A & 6B, Sy No 186 & 187/P,
Masid Banda, Kondapur, Hyderabad,
Telangana- 500084.

...Transferor Company No.1/
Applicant Company No.1

Bitkemy Technologies Private Limited
Registered office : Rajapraasadamu, Level-5,
Wing -1, Plot No 6A & 6B, Sy No 186 & 187/P,
Masid Banda, Kondapur, Hyderabad,
Telangana – 500084.

...Transferor Company No.2/
Applicant Company No.2

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Kagami (India) Private Limited
Registered office : Rajapraasadamu, Level-2,
Plot No 6A & 6B, Sy No 186/P &187/P,
Masid Banda, Kondapur, Hyderabad,
Telangana – 500084.

...Transferor Company No.3/
Applicant Company No.3

Prasaditya Idea Private Limited
Registered Office: Rajapraasadamu, Level-5, Wing -1, Plot No 6A & 6B Sy No 186 &187/P, Masid Banda, Kondapur, Hyderabad, Telangana – 500084.
Represented by its Director Mrs. Smitha Motaparti (DIN:02470160).

...Transferee Company /
Applicant Company

Date of order:16.07.2025

Coram:

SHRI. RAMMURTI KUSHAWAHA, HON'BLE MEMBER (JUDICIAL)

SHRI. MAN MOHAN GUPTA, HON'BLE MEMBER (TECHNICAL)

Appearance:

For Petitioner Companies : Shri V. Venkata Rami Reddy, Advocate
Shri M. Parameswara Reddy,Advocate

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PER: BENCH

ORDER

1. This is a Joint Application filed by the Applicant Companies under Sections 230 to 232 read with Companies (Compromises, Arrangements and Amalgamations), Rules 2016 by inter-alia seeking for the following reliefs:

- *Dispense with convening the meeting of the Shareholders of the Transferor Company No.1.*
- *Dispense with the convening meeting of the Secured Creditors of the Transferor Company No.1.*
- *Dispense with the convening meeting of the Unsecured Creditors of the Transferor Company No.1.*
- *Dispense with convening the meeting of the Shareholders of the Transferor Company No.2.*
- *Dispense with the convening meeting of the Secured Creditors of the Transferor Company No.2.*
- *Dispense with the convening meeting of the Unsecured Creditors of the Transferor Company No.2.*
- *Dispense with convening the meeting of the Shareholders of the Transferor Company No.3.*
- *Dispense with the convening meeting of the Secured Creditors of the Transferor Company No.3.*
- *Dispense with the convening meeting of the Unsecured Creditors of the Transferor Company No.3.*

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- *Dispense with convening the meeting of the Shareholders of the Transferee Company.*
- *Dispense with the convening meeting of the Secured Creditors of the Transferee Company.*
- *Dispense with the convening meeting of the Unsecured Creditors of the Transferee Company.*

A copy of the proposed Scheme of Amalgamation whereby the Applicant Companies/Transferor Companies are merging into the Applicant Company/Transferee Company, is annexed to the application and marked as **ANNEXURE "I".**

2. The averments made in the application are briefly described as under:

A. **LOQ LABS PRIVATE LIMITED** (hereinafter referred to as the **"Transferor Company No.1/Applicant Company No.1"**) was incorporated on 10.02.2012 with Registrar of Companies, Hyderabad, under the provisions of the Companies Act, 1956 with Corporate Identity Number U72200TG2012PTC079078. Applicant Company No.1/Transferor Company No.1 is engaged in business of Software development, training, consultancy, etc. Certified copy of the Certificate of Incorporation, Memorandum and Articles of Association of the

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Transferor Company No.1 is annexed and marked as **ANNEXURE "A"** to the Application.

B. The Authorized, Issued, Subscribed and Paid-Up Share Capital of the Applicant Company No.1/Transferor Company No.1 as on 31.03.2024 and 31.03.2025 are as under:

Particulars	2024-25 Amounts Rs.	2023-24 Amount Rs.
EQUITY AND LIABILITIES:		
Share Capital	1,00,00,000	10,00,000
Reserves and Surplus	(34,20,36,719)	(33,27,92,791)
Non-Current Liabilities		
Long Term Borrowings	33,83,52,613	34,63,52,613
Deferred Tax Liability	2,88,098	2,88,098
Current Liabilities		
Trade Payables	1,05,69,756	11,85,449
Other Current Liabilities	21,97,533	11,76,700
Short term provisions	25,41,027	5,45,238
TOTAL	**2,19,12,308**	**1,77,55,307**
ASSETS:		
Non Current Assets		
Fixed Assets		

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(i) Property Plant & Equipment	3,67,526	4,92,365
(ii) Intangible Assets	1,43,69,283	1,15,81,145
Current Assets		
Trade Receivables	54,28,081	30,22,322
Cash and Bank Balances	79,141	37,349
Other Current assets	16,68,277	26,22,125
TOTAL	**2,19,12,308**	**1,77,55,307**

Certified copy of the Audited Balance Sheet as on 31.03.2024 and the Unaudited Financial Statements as on 31.03.2025 of the Transferor Company No.1 is annexed and marked as **Annexure B** to the Application.

C. **BITKEMY TECHNOLOGIES PRIVATE LIMITED** (hereinafter referred to as the **"Transferor Company No.2" or the "Applicant Company No.2"**) is a company originally incorporated under the name and style of Bitchemy Ventures Private Limited pursuant to the provisions of the Companies Act, 1956 on 30.08.2012 and having Corporate Identification Number (CIN): U72200AP2012PTC082782. With effect from 13.01.2016, the name of the company changed to Bitkemy Ventures Private Limited and subsequently on 13.02.2019, the name of the

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company changed to Bitkemy Technologies Private Limited. The Corporate Identity Number of the Company is (CIN): U72200TG2012PTC082782. The Transferor Company no.2 is primarily engaged in business of Software development, training, consultancy, etc. Certified copy of the Certificate of Incorporation, Change of Name, Memorandum and Articles of Association of the Transferor Company No.2 is annexed and marked as **ANNEXURE "C"** to the Application.

D. The Authorized, Issued, subscribed and paid-up Share Capital of the Transferor Company No.2/Applicant Company No.2 as on 31.03.2024 and 31.03.2025 are as under:

Particulars	2024-25 Amounts Rs.	2023-24 Amount Rs.
EQUITY AND LIABILITIES:		
Share Capital	10,00,000	10,00,000
Reserves and Surplus	(14,42,72,069)	(17,27,68,495)
Non-Current Liabilities		
Long Term Borrowings	26,59,44,145	26,47,34,145
Current Liabilities		
Other Current Liabilities	54,29,617	52,98,031
TOTAL	**12,80,99,278**	**9,82,63,680**

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ASSETS:		
Non Current Assets		
(i) Property, Plant & Equipment	6,10,639	8,02,098
(ii) Intangible Assets	7,23,42,781	6,97,90,569
Deferred tax Asset	1,83,601	1,27,159
Current Assets		
Trade Receivables	3,23,60,180	2,02,18,753
Cash and Bank Balances	3,41,188	35,89,402
Short Term Loans and Advances	1,74,08,086	1,08,013
Other Current assets	48,52,804	36,27,686
TOTAL	**12,80,99,278**	**9,82,63,680**

Certified copy of the Audited Balance Sheet as on 31.03.2024 and the Unaudited Financial Statements as on 31.03.2025 of the Transferor Company No.2 is annexed and marked as **ANNEXURE D** to the Application.

There is typographical error in the Application with regard to the Reserves and Surplus financial figures, for which Memo dated 14.07.2025 has been filed by rectifying the same. The memo is read along with the Application.

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E. **KAGAMI (INDIA) PRIVATE LIMITED** (hereinafter referred to as the **"Transferor Company No.3" or the "Applicant Company No.3"**) was incorporated on 11.03.2016, under the provisions of the Companies Act, 2013 with Corporate Identification Number U72200TG2016PTC103826. Certified copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company No.3 is annexed and marked as **ANNEXURE "E"** to the Application.

F. The Authorized, Issued, subscribed and paid-up Share Capital of the Transferor Company No.3/Applicant Company No.3 as on 31.03.2024 and 31.03.2025 are as under:

Particulars	**2024-25 Amounts Rs.**	**2023-24 Amount Rs.**
EQUITY AND LIABILITIES:		
Share Capital	10,00,000	10,00,000
Reserves and Surplus	(6,71,10,193)	(9,53,20,510)
Non-Current Liabilities		
Long Term Borrowings	37,56,30,000	35,85,90,000
Current Liabilities		

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Other Current Liabilities	1,50,16,454	1,41,33,247
TOTAL	**32,45,48,904**	**27,84,02,737**
ASSETS:		
Non Current Assets		
(i) Property, Plant & Equipment	13,61,932	23,22,198
(ii) Intangible Assets	24,31,26,238	23,77,09,078
Deferred Tax Asset	2,06,99,545	1,63,75,543
Current Assets		
Trade Receivables	4,02,41,766	1,20,25,423
Cash and Bank Balances	13,501	1,49,006
Short Term Loans and Advances	98,33,722	1,38,437
Other Current assets	92,72,200	96,83,051
TOTAL	**32,45,48,904**	**27,84,02,737**

Certified copy of the Audited Balance Sheet as on 31.03.2024 and the Unaudited Financial Statements as on 31.03.2025 of the Transferor Company No.3 is annexed and marked as **ANNEXURE F** to the Application.

There is typographical error in the Application with regard to the Reserves and Surplus financial figures, for which Memo dated 14.07.2025 has been filed by rectifying the same. The memo is read along with the Application.

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G. **PRASADITYA IDEA PRIVATE LIMITED** (hereinafter referred to as the **"Transferee Company" or the "Applicant Company "**) is a company originally incorporated under the name and style of Altiux Innovations Private Limited pursuant to the provisions of the Companies Act, 1956 on 01/08/2013 and having Corporate Identification Number (CIN): U72200AP2013PTC089287. With effect from 06.03.2025, the name of the company changed to Prasaditya Idea Private Limited. The Corporate Identity Number of the Company is (CIN): U72200TG2013PTC089287.

Certified copy of the Certificate of Incorporation, Change of Name, Memorandum and Articles of Association of the Transferee Company is annexed and marked as **ANNEXURE "G"** to the Application.

H. The Authorized, Issued, subscribed and paid-up Share Capital of the Transferee Company/Applicant Company as on 31.03.2024 and 31.03.2025 are as under:

Particulars	**2024-25 Amounts Rs.**	**2023-24 Amount Rs.**
EQUITY AND LIABILITIES:		
Share Capital	28,00,00,000	28,00,00,000

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Reserves and Surplus	(44,80,52,356)	(44,76,44,899)
Non-Current Liabilities		
Long Term Borrowings	70,31,21,301	69,29,21,301
Current Liabilities		
Other Current Liabilities	7,44,83,281	5,44,65,674
TOTAL	**60,95,70,855**	**57,97,42,076**

ASSETS:		
Non Current Assets		
(i) Property, Plant & Equipment	7,24,130	7,40,852
(ii) Intangible Assets	3,47,81,092	6,05,87,906
(iii) Intangible Assets under development	40,00,51,443	35,26,18,700
Deferred Tax Asset (net)	15,43,37,977	14,76,23,857
Current Assets		
Trade Receivables	47,16,934	24,46,035
Cash and Bank Balances	1,64,145	3,54,344
Short Term Loans and Advances	38,43,335	35,51,464
Other Current assets	1,08,31,800	1,18,18,918
Investment	1,20,000	--
TOTAL	**60,95,70,855**	**57,97,42,076**

Certified copy of the Audited Balance Sheet as on 31.03.2024 and the Financial Statements as on 31.03.2025 of the Transferee Company is annexed hereto and marked as **ANNEXURE H** to the Application.

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There is typographical error in the Application with regard to the Reserves and Surplus financial figures, for which Memo dated 14.07.2025 has been filed by rectifying the same. The memo is read along with the Application.

3. The Board of Directors of the Applicant Companies in their respective Board Meetings held on 02.05.2025 has approved the Scheme of amalgamation between the Transferor Companies and the Transferee Company with the appointed date being 01.04.2025. Certified copy of the Scheme of Amalgamation approved by the Board of Directors of the Applicant Companies are annexed and marked as **ANNEXURE "I"** to the Application.

Certified copy of the resolutions passed at the respective meetings of the Board of Directors of the Applicant Companies approving the scheme are annexed and marked as **ANNEXURE J** to the Application.

4. **RATIONALE AND BENEFITS OF THE SCHEME:**

The Applicant Company submits that the rationale behind the amalgamation, inter alia have following benefits:

The proposed Scheme will benefit in the following manner:

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i) The Amalgamation will enable pooling of resources of the Companies involved in Amalgamation to their common advantage, resulting in more productive utilization of the said resources and achieving economies of scale resulting into cost and operational efficiencies, which would be beneficial for all the stakeholders.

ii) The Amalgamation would bring synergies in administration, technology, and marketing operations.

iii) The Amalgamation would help to achieve consolidation, greater integration and flexibility which will maximize overall shareholders' value and improve the competitive position of the Transferee Company.

iv) The Amalgamation would help combine the administrative and marketing functions of the entities involved and consequently result into more efficient functioning of the Transferee Company in a cost-effective manner.

v) The Amalgamation is expected to increase the financial strength thereby enabling further growth and development of the Transferee Company.

vi) The Amalgamation would bring greater management focus and would help in achieving uniform corporate policies and faster / effective decision making and its implementation.

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vii) Cost reduction as a result of focused operational efforts, elimination of duplication of administrative expenses, optimum utilization of available resources and integrating management focus which will make the internal control systems more efficient and effective.

viii) Business synergies in the operations of the Transferee Company and the Transferor companies will provide operational flexibility and a stronger and wider capital and financial base for future growth/ expansion of the Transferee Company.

ix) The Amalgamation would help avoiding duplication of regulatory and procedural compliances and consequently result into saving of time, resources and cost involved in such compliances.

x) The Amalgamation shall be beneficial and in the best interests of the shareholders, creditors, employees of the Companies involved, and all concerned.

5. ACCOUNTING TREATMENT

The Applicant Companies submitted that the accounting treatment specified in the Scheme of Amalgamation is in conformity with the Accounting Standards prescribed under Section 133. Copies of the Auditor Certificate under Section 133 of the Companies Act, 2013 certifying the same is annexed as ANNEXURE "AE" to the Application.

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6. THE SWAP RATIO/ISSUE OF SHARES BY TRANSFEREE COMPANY

The Transferor Companies are wholly owned subsidiaries of the Transferee Company and the entire equity shares of the Transferor Companies are held by the Transferee Company and its Nominees. Accordingly, there would be no issue of equity shares of the Transferee Company to the shareholders of the Transferor Companies. Pursuant to the vesting of the undertaking in the Transferee Company, the equity shares of the Transferor Companies shall automatically stand cancelled on record date.

Upon this Scheme coming into effect, the shares held by the Transferee Company in the Transferor Companies shall be deemed to have been cancelled and shall be of no effect from the effective date.

7. SHAREHOLDERS

It is averred that there are 2 (two) Shareholders in each Transferor Company No.1/Applicant Company No.1, Transferor Company No.2/Applicant Company No.2, Transferor Company No.3/Applicant Company No.3 and Transferee Company/Applicant Company as on 20.05.2025. The said shareholders of Transferor Companies No. 1, 2,

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3 and Transferee Company have given their respective consent Affidavits for approving the Scheme. Copy of Certificate of Auditors certifying the list of shareholding pattern of the Applicant Companies are enclosed as **ANNEXURE K,P,U,Z** to the Application. Copy of Affidavits given by the shareholders of the Applicant Companies stating No Objection to the Scheme of Amalgamation are attached hereto and marked as **ANNEXURE "L,Q,V,AA"** to the Application.

SECURED CREDITOR

8. As on 20.05.2025, the Transferor Company No.1, 2 and 3 and the Transferee Company has not availed any secured loans as on the date of filing of this application and hence does not have Secured Creditors. Therefore, the requirement of obtaining consent from Secured Creditors does not arise. Certification issued by the Auditor stating that there are no Secured Creditor in the Applicant Companies are annexed to the Application as **ANNEXURE "M,R,W,AB"**.

9. **UNSECURED CREDITORS**

(a) There are **11 (Eleven)** Unsecured creditors in the Transferor Company No.1 as on 20.05.2025 comprising in value of Rs.34,98,43,093/- (Rupees Thirty Four Crore Ninety Eight Lakh

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Forty Three Thousand Ninety Three Only). Certificate of Auditors certifying the list Un-Secured Creditor of the Transferor Company No.1 is enclosed as **ANNEXURE "N"**. Copy of Affidavits given by the concerned Unsecured Creditors of the Transferor Company No.1 declaring No Objection to the Scheme of Amalgamation are enclosed as **ANNEXURE "O"**.

(b) There are 4 **(Four)** Unsecured creditors of the Transferor Company No.2 as on 20.05.2025 comprising in value of Rs.26,73,42,767/- (Rupees Twenty Six Crore Seventy Three Lakh Forty Two Thousand Seven Hundred Sixty Seven Only). Certificate of Auditors certifying the list Un-Secured Creditor of the Transferor Company No.2 is enclosed as **ANNEXURE "S"**. Copy of Affidavits given by the concerned Unsecured Creditors of the Transferor Company No.2 declaring No Objection to the Scheme of Amalgamation are enclosed as **ANNEXURE "T"**.

(c) There are **6 (Six)** Unsecured creditors of the Transferor Company No.3 as on 20.05.2025 comprising in value of Rs.39,23,91,282/- (Rupees Thirty Nine Crore Twenty Three Lakh Ninety One Thousand Two Hundred Eighty Two Only). Certificate of Auditors

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certifying the list Un-Secured Creditor of the Transferor Company No.3 is enclosed as **ANNEXURE "X"**. Copy of Affidavits given by the concerned Unsecured Creditors of the Transferor Company No.3 declaring No Objection to the Scheme of Amalgamation are enclosed as **ANNEXURE "Y"**.

(d) There are **10 (Ten)** Unsecured creditors of the Transferee Company as on 20.05.2025 comprising in value of Rs.76,83,81,751/- (Rupees Seventy Six Crore Eighty Three Lakh Eighty One Thousand Seven Hundred Fifty One Only). Certificate of Auditors certifying the list Un-Secured Creditor of the Transferee Company is enclosed as **ANNEXURE "AC"**. Copy of Affidavits given by the concerned Unsecured Creditors of the Transferee Company declaring No Objection to the Scheme of Amalgamation are enclosed as **ANNEXURE "AD"**.

10. **DECLARATION:**

(A)No petition under Section 241 to 244 of the Companies Act, 2013 has been filed against the Applicant Companies and there has been no material change in the affairs of the Applicant Companies, except for what was done in the normal course of business.

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(B)There are no proceedings pending under Section 235 to 251 of the Companies Act, 1956 or under Section 210 to 227 of the Companies Act, 2013 against the Applicant Companies.

11. We have heard the Learned Counsel for Applicant Companies and perused the documents filed. This is the first stage joint Application seeking for dispensation of meetings of Shareholders, Secured Creditors and Unsecured Creditors of Applicant Companies for the Scheme of Amalgamation. All the shareholders, and unsecured creditors have given their consent for the Scheme and there are no secured creditors in the Applicant Companies. We have perused the Certificate issued by the Chartered Accountant with regard to the shareholders and creditors. In view of the above facts, we hold that meetings of equity shareholders, secured and unsecured creditors of the Applicant Companies be dispensed with.

12. After hearing the Learned Counsel for Applicant Companies and after perusing the documents filed, we pass the following order: -

(a) We hereby dispense with convening the meeting of Shareholders, secured creditors and unsecured creditors of the Applicant Companies.

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(b) Notwithstanding the above, when the Applicant Companies approach this Tribunal seeking approval of the Scheme, it would be open for any person who is interested in the Scheme of Amalgamation to put forth their contentions before this Tribunal.

(c) Accordingly, the Company Application CA (AA)No.31/230/HDB/2025 is allowed and the same is disposed of.

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Man Mohan Gupta
Member Technical

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Rammurti Kushawaha
Member Judicial

Pavani